

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

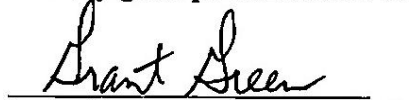
(Date)

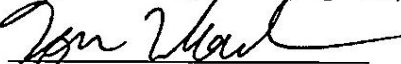
I move to amend Senate Bill No. 1319, by substituting the attached floor substitute (Request #3830) for the title, enacting clause, and entire body of the measure.

Submitted by:


Senator Frix

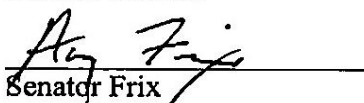
I hereby grant permission for the floor substitute to be adopted.


Senator Green, Chair (required)


Senator Woods

Senator Boren

Senator Dossett


Senator Frix

Senator Jett

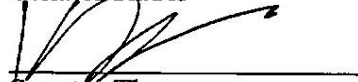
Senator Paxton, President Pro Tempore


Senator Kern


Senator McIntosh

Senator Murdock

Senator Rader


Senator Thompson

Senator Daniels, Majority Floor Leader

Note: Energy committee majority requires six (6) members' signatures.

Frix-CN-FS-SB1319
3/19/2026 10:03 AM

(Floor Amendments Only)

Date and Time Filed: 3/24/26 10:04am fd

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 1319

By: Frix of the Senate

and

Sneed of the House

FLOOR SUBSTITUTE

[Corporation Commission - Revolving Fund -
expenditure - assistance - rules - codification -
emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 180.14 of Title 17, unless there
is created a duplication in numbering, reads as follows:

A. The Corporation Commission shall establish a process to
alleviate new and ongoing serious environmental emergencies through
which a homeowner whose residence has become contaminated by a
substance within the Corporation Commission's jurisdiction,
including, but not limited to, brine or oil, may apply for
remediation assistance.

1 B. 1. To request the use of funds from the Remediation
2 Assistance Revolving Fund created in Section 2 of this act, the
3 homeowner shall file an application to be considered by the
4 Corporation Commission. The Corporation Commission may hear the
5 application with or without notice.

6 2. After considering the evidence presented, the Corporation
7 Commission shall rule on the application and determine the amount of
8 remediation assistance necessary to remediate and abate the
9 environmental emergency.

10 3. The amount of remediation assistance may include the cost to
11 stop the substance from continuing the contamination, the cost of
12 removing and cleaning up the substance, and the cost of purchasing
13 the residence and property at fair market value. The Remediation
14 Assistance Revolving Fund shall not be used to pay for any damages.

15 4. Prior to any expenditure from the Remediation Assistance
16 Revolving Fund, the Corporation Commission shall comply with the
17 requirements set forth in Section 85.41A of Title 74 of the Oklahoma
18 Statutes.

19 5. If the Corporation Commission determines that purchasing the
20 homeowner's property is the best course of action, title to the
21 property shall be acquired and held by the Commissioners of the Land
22 Office. The Commissioners of the Land Office shall determine the
23 fair market value of the property. If removal of the residence is
24 necessary, the Commissioners of the Land Office shall facilitate

1 removal of the residence. Once the residence is removed and the
2 presence of a well is confirmed, the Corporation Commission shall
3 remediate and abate the environmental emergency. After the property
4 is remediated, the Commissioners of the Land Office shall sell the
5 property and return all proceeds to the Remediation Assistance
6 Revolving Fund.

7 6. A homeowner's insurance claim shall not be required prior to
8 receiving remediation assistance provided pursuant to this
9 subsection. However, the homeowner shall in good faith pursue all
10 available homeowner's insurance claims and damage claims. All
11 proceeds received by the homeowner not related to damaged personal
12 property shall be reimbursed to the Remediation Assistance Revolving
13 Fund.

14 C. If, at any time, the environmental emergency is determined
15 by the Corporation Commission to not be within the Corporation
16 Commission's jurisdiction, or it is determined to be a naturally
17 occurring breakout, the matter shall be referred to the Department
18 of Environmental Quality and the Oklahoma Energy Resources Board to
19 remediate and abate the environmental emergency.

20 D. The Corporation Commission shall promulgate rules to
21 effectuate the provisions of this section.

22 SECTION 2. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 180.15 of Title 17, unless there
24 is created a duplication in numbering, reads as follows:

1 There is hereby created in the State Treasury a revolving fund
2 for the Corporation Commission to be designated the "Remediation
3 Assistance Revolving Fund". The fund shall be a continuing fund,
4 not subject to fiscal year limitations, and shall consist of all
5 monies received by the Corporation Commission from any public or
6 private donations, contributions, and gifts received for the benefit
7 of the fund and any amounts appropriated by the Legislature
8 designated for deposit in the fund. All monies accruing to the
9 credit of the fund are hereby appropriated and may be budgeted and
10 expended by the Corporation Commission for the purpose of providing
11 remediation assistance as provided for in Section 1 of this act.
12 Expenditures from the fund shall be made upon warrants issued by the
13 State Treasurer against claims filed as prescribed by law with the
14 Director of the Office of Management and Enterprise Services for
15 approval and payment.

16 SECTION 3. It being immediately necessary for the preservation
17 of the public peace, health or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval.

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21 60-2-3830 CN 3/24/2026 10:48:25 AM

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